

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF New York

Index No.: _____
Date Purchased: _____
SUMMONS

-----X
RUFUS DANTZLER,

Plaintiff,

Plaintiff designates New
York County as the place of
trial.

vs.

The basis of venue is:
Place of Occurrence

NEW YORK CITY POLICE DEPARTMENT, THE CITY OF NEW
YORK and/or THE POLICE DEPARTMENT OF THE CITY OF
NEW YORK AND POLICE OFFICER(S) "JOHN DOE(S)" OF THE
6TH PRECINCT,

Plaintiff resides at:
1821 Pitkin Avenue
Brooklyn, N.Y. 11212

Defendant.

County of Kings

-----X
To the above named Defendant(s):

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: :New York, New York
August 19, 2015



JAY H. TANENBAUM
LAW OFFICES OF JAY H. TANENBAUM
Attorney for Plaintiff
14 Wall Street – Suite 5F
New York, New York 10005
(212) 422-1765
Our File No. 555-15J-0038

TO:
NEW YORK CITY POLICE DEPARTMENT,
One Police Plaza
New York, New York

THE CITY OF NEW YORK
100 Church Street
New York, New York 10007

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF New York

VERIFIED COMPLAINT

-----X
RUFUS DANTZLER,

Index No.:
Date Purchased:

Plaintiff,

vs.

NEW YORK CITY POLICE DEPARTMENT, THE CITY OF NEW
YORK and/or THE POLICE DEPARTMENT OF THE CITY OF
NEW YORK AND POLICE OFFICER(S) "JOHN DOE(S)" OF THE
6TH PRECINCT,

Defendants.

-----X

Plaintiff, by his attorney, LAW OFFICES OF JAY H. TANENBAUM, complaining of the
Defendants, respectfully alleges, upon information and belief, as follows:

AS AND FOR A FIRST CAUSE OF ACTION

1. That, at all times hereinafter mentioned and on April 24, 2015, the plaintiff,
RUFUS DANTZLER, was and still is a resident of the County of Kings, City and State of New
York.

2. That, at all times hereinafter mentioned and on April 24, 2015 the defendant, THE
CITY OF NEW YORK, was and still is a domestic municipal corporation, duly organized was and
still is a resident of the City and State of New York.

3. That, at all times hereinafter mentioned and on April 24, 2015 the defendant, THE
NEW YORK CITY POLICE DEPARTMENT OF THE CITY OF NEW YORK, was and still is a
domestic municipal corporation, duly organized was and still is a resident of the City and State of
New York.

4. That on May 28, 2015, and within the time prescribed by law, a sworn Notice of
Claim stating, among other things, the time when and the place where the injuries and damages

were sustained, together with Plaintiff's demands for adjustment thereof was duly served on the Plaintiffs' behalf on the Comptroller of the City of New York and that, thereafter, said Comptroller for **THE CITY OF NEW YORK** refused or neglected for more than thirty (30) days, and up to the commencement of this action, to make any adjustment or payment thereof, and that, thereafter, and within the time provided by law, this action was commenced.

5. That on August 14, 2015, pursuant to General Municipal Law Section 50(h), a hearing was held at the Office of the Comptroller or at the office of a designated agent.

6. That the action has been commenced within 1 year and 90 days of the date of accrual.

7. That, on April 24, 2015, the plaintiff, **RUFUS DANTZLER**, was assaulted and falsely arrested by the defendant, and/or defendants by and through their agents, servants and/or employees.

8. That, the plaintiff, **RUFUS DANTZLER**, was assaulted and falsely arrested without justification and without cause and without excuse.

9. That, the assault, battery and false arrest took place at West 3rd Street between Broadway and McDougal Street in the County of New York, City and State of New York, wherein the plaintiff, **RUFUS DANTZLER** was assaulted and held against his will by the defendant and/or defendants, their agents, servants and/or employees and furthermore, the plaintiff was taken to Lenox Hill Hospital to have an unnecessary X-Rays to prove he did not swallow any illegal substance.

10. That, at all times hereinafter mentioned and on April 24, 2015, and for sometime thereafter, defendant, **POLICE OFFICER JOHN DOE**, was a New York City police officer, and/or agent servant and/or employee of the City, working in the scope and course of his employment as a new York City Police Officers, and was employed by the defendant, **THE CITY OF NEW YORK**.

11. That, at all times hereinafter mentioned and on April 24, 2015, and for sometime thereafter, defendant, **POLICE OFFICER JOHN DOE**, was a New York City police officer, and/or agent servant and/or employee of the City, working in the scope and course of his employment as a New York City Police Officers, and was employed by the defendant, **THE NEW YORK CITY POLICE DEPARTMENT OF THE CITY OF NEW YORK**.

12. That, the aforementioned assault and false arrest of the plaintiff, **RUFUS DANTZLER**, was carried out by police officers and/or other servants, agents and/or employees of the defendant, and/or defendants.

13. That, by reason of the foregoing, the plaintiff, **RUFUS DANTZLER**, was injured; was rendered sick, sore, lame and disabled; was and/or will be caused to undergo medical treatment and advice; was unable to pursue his usual and regular activities; and, upon information and belief, his injuries are permanent in nature and effect.

14. That this action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

15. That, by reason of the foregoing, the plaintiff, **RUFUS DANTZLER**, has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

AS AND FOR A SECOND CAUSE OF ACTION

16. That the plaintiff, **RUFUS DANTZLER**, repeats, reiterates, and realleges, each and every allegation as set forth in paragraphs 1 through 15 with the same force and effect as if hereinafter more fully set forth at length herein.

17. That, all of the aforementioned acts, committed by police officers, servants, and/or other employees of the defendant, **THE CITY OF NEW YORK**, were committed due to the

negligence, recklessness and carelessness of the aforementioned police officers, agents, servants and/or other employees of the defendant, **THE CITY OF NEW YORK**.

18. That, all of the aforementioned acts, committed by police officers, servants, and/or other employees of the defendant, **THE NEW YORK CITY POLICE DEPARTMENT OF THE CITY OF NEW YORK**, were committed due to the negligence, recklessness and carelessness of the aforementioned police officers, agents, servants and/or other employees of the defendant, **THE NEW YORK CITY POLICE DEPARTMENT OF THE CITY OF NEW YORK**,

19. That the defendant, **THE CITY OF NEW YORK**, was additionally negligent, reckless and careless in the negligent hiring, negligent retention, and negligent training of various police officers, agents, servants and/or other employees, who were employed by the defendant, **THE CITY OF NEW YORK**.

20. That the defendant, **THE NEW YORK CITY POLICE DEPARTMENT OF THE CITY OF NEW YORK**, was additionally negligent, reckless and careless in the negligent hiring, negligent retention, and negligent training of various police officers, agents, servants and/or other employees, who were employed by the defendant, **THE NEW YORK CITY POLICE DEPARTMENT OF THE CITY OF NEW YORK**.

21. That, all of the aforementioned acts, committed by the police officers, agents, servants and/or other employees of the defendant, **POLICE OFFICER JOHN DOE**, were committed due to the negligence, recklessness and carelessness of the aforementioned police officers, agents, servants and/or other employees of the defendant, **THE CITY OF NEW YORK**.

22. That, all of the aforementioned acts, committed by the police officers, agents, servants and/or other employees of the defendant, **POLICE OFFICER JOHN DOE**, were committed due to the negligence, recklessness and carelessness of the aforementioned police officers, agents, servants and/or other employees of the defendant, **THE NEW YORK CITY POLICE DEPARTMENT OF THE CITY OF NEW YORK**.

23. That, the defendant, **THE CITY OF NEW YORK**, was additionally negligent, reckless and careless in the negligent hiring, negligent retention, and negligent training of various police officers, agents, servants, and/or other employees, including, but not limited to defendant, **POLICE OFFICER JOHN DOE**, who was employed by the defendant, **THE CITY OF NEW YORK**.

24. That, the defendant, **THE NEW YORK CITY POLICE DEPARTMENT OF THE CITY OF NEW YORK**, was additionally negligent, reckless and careless in the negligent hiring, negligent retention, and negligent training of various police officers, agents, servants, and/or other employees, including, but not limited to defendant, **POLICE OFFICER JOHN DOE**, who was employed by the defendant, **THE NEW YORK CITY POLICE DEPARTMENT OF THE CITY OF NEW YORK**.

25. That, by reason of the foregoing, the plaintiff, **RUFUS DANTZLER**, was injured; was rendered sick, sore, lame and disabled; was and/or will be caused to undergo medical treatment and advice; was unable to pursue his usual and regular activities; and, upon information and belief, his injuries are permanent in nature and effect.

26. That this action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving the defendant and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

27. That, by reason of the foregoing, the plaintiff, **RUFUS DANTZLER**, has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

AS AND FOR A THIRD CAUSE OF ACTION

28. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 through 27 with the same force and effect as if same were set forth herein more fully at length.

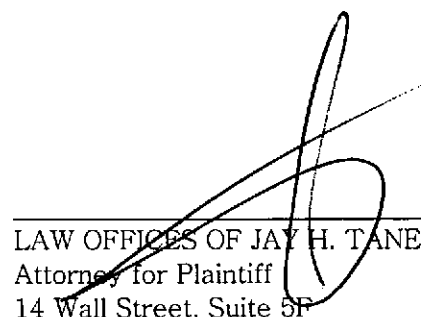
29. That at all the times hereinafter mentioned, there were in full force and effect, Sections 1981 through 1988 of Title 42 of the U.S. Code.

30. That at all the times hereinafter mentioned, defendants, their agents, servants and/or employees, violated the aforescribed Title 42 of the U.S. Code Section 1981 through 1988, and did violate the plaintiff's Civil Rights.

31. That, by reason of the foregoing, the plaintiff, RUFUS DANTZLER, has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

WHEREFORE, plaintiff, RUFUS DANTZLER, demands judgment against the defendants, on all causes of actions in an amount in excess of the jurisdictional limits of all of the lower Courts of the State of New York; together with interest, as well as the costs and disbursements of these causes of action.

Dated: New York, New York
August 19, 2015



LAW OFFICES OF JAY H. TANENBAUM
Attorney for Plaintiff
14 Wall Street, Suite 5F
New York, New York 10005
(212) 422-1765
File No.: 555-15J-0038

ATTORNEY'S VERIFICATION

The undersigned, an attorney, admitted to practice in the Courts of the State of New York, shows:

That deponent is the attorney of record for the plaintiff(s) in the within action; that deponent has read the foregoing complaint bill of particulars, and knows the contents thereof; that the same is true to deponent's own knowledge, except as to the matters therein stated to be alleged upon information and belief, and that as to those matters, deponent believes that to be true. Deponent further says that the reason this verification is made by deponent and not by plaintiff (s) is that plaintiff (s) reside (s) in a county other than in which deponent maintains his offices.

The grounds for deponent's belief as to all matters not stated upon his knowledge are investigations which he has made or has caused to be made concerning the subject matter of this action, and statements of parties and/or witnesses made herein.

The undersigned affirms that the foregoing statements are under the penalties of perjury:

Dated: New York, N.Y.

Sgd./

JAY H. TANENBAUM

INDIVIDUAL VERIFICATION

STATE OF NEW YORK, COUNTY OF New York)SS:

Rufus Dantzer

Being duly sworn, deposes and says:

That deponent is the plaintiff (s) in the within action; that deponent has read the foregoing complaint ~~bill of particulars~~, and knows the contents thereof; that the same is true except as to those matters therein stated to be alleged upon information and belief, and as to those matters, deponent believes it to be true.

Sgd./

Sworn to before me this

19th

day of

August, 2015

JAY H. TANENBAUM
Notary Public, State of New York
No. 02TA5028657
Qualified in New York County
Commission Expires June 6, 2018

Index No.
SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

RUFUS DANTZLER,

Plaintiff(s),

-against-

NEW YORK CITY POLICE DEPARTMENT, THE CITY OF NEW YORK and/or THE
POLICE DEPARTMENT OF THE CITY OF NEW YORK AND POLICE OFFICER(S) "JOHN
DOE(S)" OF THE 6TH PRECINCT,

Defendant(s).

SUMMONS AND VERIFIED COMPLAINT

TO:

LAW OFFICES OF JAY H. TANENBAUM

Attorney for Plaintiff

14 Wall Street - Suite 5F

New York, New York 10005

Tel No.: (212) 422-1765

Fax No.: (212) 425-7492

Pursuant to 22 NYCRR 130-1.1, the undersigned, an attorney admitted to practice in the Courts of New York State, certified that, upon information and belief and reasonable inquiry, the contentions contained in the annexed document are not frivolous.

Dated: August 19, 2015

Signature

Print Signors Name LAW OFFICES OF JAY H. TANENBAUM